

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA

In the matter of an application for orders in the nature of Writs of Certiorari, Prohibition and Mandamus under and it terms of the provisions of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

CA WRIT : 529/25

Geethanjali Rupika Ranawaka,
199/9, Priyadarshana Mawatha, off Rampart
Road, Ethul Kotte

PETITIONER

Vs.

1. Hon. (Dr) Harini Amarasuriya
Minister of Education, Higher Education and
Vocational Education
2. Hon. Vijitha Herath
Minister of Foreign Affairs, Foreign
Employment and Tourism
3. Hon (Dr) Nalinda Jayatissa
Minister of Health and Mass Media
4. Hon. K.D. Lal Kantha
Minister of Agriculture, Livestock, Land and
Irrigation
5. Hon. Bimal Rathnayaka,

Minister of Transport, Highways, Ports and
Civil Aviation

6. Hon. Sunil Handunneththi
Minister of Industry and Entrepreneurship
Development
7. Hon. Ramalingam Chandrasekar
Minister of Fisheries, Aquatic and Ocean
Resources
8. Hon. (Prof) Anil Jayantha Fernando
Minister of Labour
9. Hon. Samantha Viddayarathna
Minister of Plantation and Community
Infrastructure
10. Hon. Anura Karunathilaka
Minister of Urban Development, Construction
and Housing
11. Hon. (Dr) A.H.M.H. Abayarathna
Minister of Public Administration, Provincial
Councils and Local Government
12. Hon. Wasantha Samarasinghe
Minister of Trade, Commerce, Food Security
and Cooperative Development
13. Hon. Harshana Nanayakkara, AAL
Minister of Justice and National Integration.

14. Hon. (Mrs) Saroja Savithri Paulraj
Minister of Women and Child Affairs
15. Hon. (Dr) Upali Pannliage
Minister of Rural Development, Social Security
and Community Empowerment
16. Hon. K. M. Ananda Wijepala
Minister of Public Security and Parliamentary
Affairs
17. Hon. (Dr) Hiniduma Sunil Senevi
Minister of Buddhasasana, Religious and
Cultural Affairs.
18. Hon. Sunil Kumara Gamage
Minister of Youth Affairs and Sports
19. Hon. (Dr) Chrishantha Abeysena
Minister of Science and Technology
20. Hon (Eng) Kumara Jayakody
Minister of Energy
21. Hon. (Dr) Dammika Patabendi
Minister of Environment

1st to the 21st Respondents are Members of the
Cabinet of Ministers of the Republic,
Office of the Cabinet of Ministers,
Lloyd's Building,
Sir Baron Jayathilaka Mawatha,
Colombo 01.

22. Hon. Attorney-General,
The Attorney-General's Department
Colombo 12.

23. Mr. K.A. Vimalenthirarajah,
Secretary,
Ministry of Trade, Commerce, Food Security
and Cooperative Development

24. Information and Communication Technology
Agency of Sri Lanka,
No. 490,
R A De Mel Mawatha,
Colombo 03.

25. Mr. Chaminda Hettiarachchi,
Director General of Pensions,
Department of Pensions,
Maligawatta,
Colombo 10.

RESPONDENTS

Before : **Hon. Rohantha Abeyesuriya PC, J.(P/CA)**
: **Hon. K. Priyantha Fernando, J.(CA)**

Counsel : Suren Gnanaraj, AAL with Ms. S. Weeraratne, AAL
instructed by Amila Kumara, AAL for the Petitioner.

Shehan Soysa, SSC for the Respondents.

Written Submissions on : 12.01.2026 for the Respondents.

23.01.2026 for the Petitioner.

Argued on : 24.11.2025

Decided on : 27.05.2026

K. Priyantha Fernando, J.(CA)

1. The Petitioner invoked the jurisdiction of this Court seeking to challenge the alleged unlawful arbitrary decision taken by the 23rd Respondent (Secretary, Ministry of Trade, Commerce, Food Security and Cooperative Development) to issue a charge sheet on her (the Petitioner) just prior to her retirement from public service where she served as Director General of the National Intellectual Property Office of Sri Lanka (NIPO). In doing so, the Petitioner sought from this court a writ of *Certiorari* quashing the decision of the 23rd Respondent (Secretary, Ministry of Trade, Commerce, Food Security and Cooperative Development) to serve a charge sheet on the Petitioner and commence a formal disciplinary inquiry against her and a writ of *Mandamus* restraining the Respondents from taking any steps to commence and proceed with formal disciplinary inquiry against her.
2. When this matter was supported for the issuance of formal notice, the Charge Sheet marked P77 was temporarily suspended by this court 16. 05. 2025. Furthermore, during oral submissions, this court, having noted that the responsibility of the allegations mentioned in the Charge Sheet was due to the Information and Communication Technology Agency of Sri Lanka (ICTA's) failure to uphold their end of the agreement, questioned if the 1st Respondent would be willing to withdraw the charge sheet against the Petitioner. However, the 1st Respondent has refused to do so.

FACTUAL BACKGROUND:

3. The Petitioner has stated that during her time as Director General of the National Intellectual Property Office of Sri Lanka (hereinafter will be referred to as NIPO), she was responsible for the effective implementation of intellectual property law in Sri Lanka. She has joined NIPO as an

Assistant Patent and Trademark Registrar in 1992 and has continued her service for over 32 years before retiring from her most recent post as Director General of NIPO after having spearheaded many initiatives and reforms.

4. The e-NIPO project as put forth in detail by the Respondent, comprised of two separate components namely the legal and administrative component which deals with document preparation and compliance (Rs 60 – 70 million) and the information technology component which was in relation to the technical systems enhancement (Rs. 30 million).
5. The Petitioner stated that with the implementation of the “e-NIPO” Project, the 23rd Respondent (Secretary, Ministry of Trade and Commerce) appointed one Mr. U. G. Ratnasiri, the Director General of the Ministry of Trade and Commerce to conduct an investigation into the payment of Rs. 32.5 million to ICTA and the non-receipt of the failure to produce the servers which were to be obtained under the MOU. Following this, a preliminary investigation was carried out in August 2023 in which it was held that no wrong doing on the part of the Petitioner was found. The Report of the preliminary investigation marked WS1 by the Respondents stated that it was ICTA that had neglected its responsibility and misappropriated the money received from the e-NIPO project.
6. Despite arriving at such a conclusion, the Ministry ordered a second preliminary investigation and an appointment was made to conduct a second preliminary investigation on the payment of the maintenance fee of the Rs. 7.5 million component of the matter. It was the second investigation that brought about the said charge sheet.
7. However, after having informed the 23rd Respondent, Secretary to the Ministry of Trade, Commerce, of her pending retirement, she was served with a charge sheet dated 28th April 2025 marked ‘P77’ listing 5 allegations against her in relation to the work carried out for the “e-NIPO” Project and have been reproduced as follows:
 - 1) *Authorising payment of Rs. 32.5 million to ICTA on 30th December 2016 prior to the delivery of servers for the Madrid project in contravention of FR 137.*
 - 2) *Failing to take steps to obtain the said server machines for NIPO despite approving the payment to ICTA.*

- 3) *Failing to deliver the said server machines to NIPO on or about 11th February 2025 despite approving the payment to ICTA in December 2016.*
- 4) *Signing an MoU on 30th December 2016 containing Clause 3.3 providing that “NIPO shall provide the required funding for the project refer Annex 1 and transfer funds to ICTA for the implementation of the project in a timely manner” in a manner allegedly violating FR 137.*
- 5) *Acting in a manner that brought the public service into disrepute based on the cumulative allegations and charges 1 through 4.*

POSITION OF THE PETITIONER:

8. The Petitioner first addressed the Respondent’s contention that the decision to select ICTA was made by the Petitioner alone and without wider consultation, thus a “sole initiative”. The Petitioner submitted that choosing ICTA was in accordance with the “e-government policy” mandate (requiring all government agencies to consult with ICTA on major ICT projects in value of over Rs. 2 million) and was a collective decision taken by the Cabinet of Ministers, the Treasury and Line Ministry (at a meeting held on 13.05.2016 [P14 and P15]). Moreover, it was submitted that the primary reason for engaging with ICTA was in order to outsource the complex e-NIPO project as NIPO did not possess the technical expertise to man such a project independently.
9. The Petitioner even submitted that she formally sought Ministerial approval to proceed with the project and enter into the MOU (P23) (for which formal final written approval was granted on 27th December 2016 [P22]) despite the fact that NIPO was under pressure and strict orders to execute the project in the financial year.
10. The Petitioner then submitted regarding the MOU (P23) between NIPO and ICTA. The Petitioner stated that an ICTA standard MOU was proposed by ICTA and only minor changes to its terms were made following suggestions from NIPO, while the substantive clauses remained as the agreement was a mandatory precondition laid down by ICTA, including Clause 3.3 which was the subject of one of the Respondent’s points of contention. Furthermore, the ICTA project manager informed NIPO that procurement could only take place once funds were sent to ICTA, and as such the payment was made to ICTA (P93).

11. It was then contended by the Respondents that signing of the MOU containing Clause 3.3 which reads “*NIPO shall provide the required funding for the Project (Refer Annex 1) and transfer funds to ICTA, for the implementation of the project in a timely manner*”, was in contravention to and violated Financial Regulation 137. The Petitioner responded by contending that FR 137 was irrelevant to this transaction for the following primary reasons: the regulation instead of acting as a prohibitory code of conduct only establishes the authority of an “approving officer”; the specific routine tasks listed do not apply to the specialized transfer in the instant matter; the transaction was not a mere commercial purchase but a transfer of funds for project mobilization.
12. Furthermore, the Petitioner submitted that she in her capacity as Director General took steps to enforce the obligation undertaken by ICTA when they were faced with non-performance on the part of ICTA. The Petitioner contended that such efforts were made over the span of 8 years to enforce the said obligations.
13. It was brought to the attention of the Petitioners that following the transfer of funds from NIPO to ICTA, the procurement process began as ICTA invited bids in September 2017. However, following the technical issues with the submission of bids the Petitioner in 2018 sought approval from the Ministry to extend the MOU (P25 and P26) and sent multiple reminders to ICTA to fulfil their responsibilities under the MOU (P27 and P28).
14. The Petitioner then in 2019 has sought formal advice from the Hon. Attorney General (P29) and attempted to negotiate with ICTA. Later in 2020 and continuing into 2021, both parties discussed revised MOUs and alternative proposals. Efforts continued into 2023 when upon the request of the Ministry of Technology, the Prime Minister’s office wrote to ICTA requesting a report on the status of the project. The Petitioner even wrote to the Office of the Prime Minister, and kept them informed with the most recent updates on the situation.
15. In 2023, following a board meeting held by ICTA on **22nd August 2023**, it was **disclosed that ICTA had misappropriated the funds transferred to it by NIP and had instead used it to pay off the April 2017 staff salaries of its employees (P63)**. In light of these findings, the Petitioner alleged that the decision taken by the Respondents to conduct a second investigation was illegal, unlawful and *ultra vires*.

16. The Petitioner set out the following reasons for the illegality of the said decision; the Establishments code does not authorize repeat investigations; the second investigation exceeded its mandate and was time barred; the justification for the said second investigation are baseless and erroneous.
17. Firstly, the Petitioner considered clause 3:1 of Chapter XLVIII of the Establishment Code in which it states that preliminary *investigations* will be caused “as are necessary”. Furthermore, Clause 13.4 allows only for concurrent investigations and not repeated one. The Petitioner pointed out that the Chapter does not provide for the carrying out of multiple proceedings anywhere in the code and that the holding of repeat investigations to get a desired outcome is an abuse of process.
18. Secondly, the Petitioner considered that the investigating officer acted in excess of the powers prescribed to him as he investigated the already investigated matter of the payment of Rs. 32.5 million. The Petitioner is of the view that an officer who has been tasked with investigating into a specific matter cannot legally go beyond the tasked matter, and must instead act within the scope of the authority granted to him.
19. Thirdly, in reference to the time barred nature of this application, the Petitioner contended that as stated in Clause 13.2 of Chapter XLVIII of the Establishment Code, in which it states as follows:
- “An authority ordering a preliminary investigation into an act of misconduct should at the same time that such order is issued, specify the time limit within which the officer or committee of such officers should complete the preliminary investigation taking into consideration the nature of each act of misconduct, as the case may be”*
20. The Petitioner submitted that the Respondents only filed the 2nd Investigation Report on 27th February 2025, whereas the Report was due on 31st October 2025. Further, no valid reasons for the delay were cited on the Report and thus it was the Petitioner’s submission that a time barred investigation report cannot act as the basis for disciplinary charges.

21. Moreover, the Petitioner highlighted that the second preliminary investigation was conducted by officers who are far more junior in position than the Petitioner herself, and hence was of the view that such conduct was a departure from the Establishment Code and its preference.
22. Finally, the Petitioner considered the reasons availed by the Respondents in justification of a second preliminary investigation. In order to do so, the Petitioner considered the minute dated 18th September 2025 marked X2. The Petitioner contended that each justification advanced by the Ministry is factually false and misconceived. The minute stated that no original documents were filed in the Report of the first investigation, whereas the report itself in its first paragraph stated that the documents have been annexed to the report and were relied upon by the investigator.
23. The Petitioner contended that every reservation against the first report was factually incorrect upon comparison with the first report itself. The Petitioner went on to state that subsequent minutes of the ministry dated 25th September and 4th October in fact endorse the first investigation report. Despite the factual inconsistencies, based on incompleteness a second investigation was called for on the basis that the Rs. 7.5 million maintenance payment had not been taken into account, despite the first investigation report stating specifically that the total (including the maintenance) payment was taken into account and investigated into.
24. Moreover, the Petitioner argued that as the matter was already considered by Cabinet (the disciplinary authority of the Petitioner) there was no necessity for the matter to once again be referred to the Cabinet of Ministers following its decision dated 20th February 2020. The decision of the Cabinet found no fault with the Petitioner; instead, the Minister of Justice, Human Rights and Law Reforms criticized only ICTA for failing to honour the MOU and for its misuse of public funds. The Petitioner contends that the Respondent's act to refer the matter once again to the cabinet of ministers is one of *mala fides* against the Petitioner.
25. Furthermore, with regard to the charge sheet against the Petitioner, it was submitted that the Petitioner believes that those charges were alleged against her, for the purpose of creating a false record of misconduct against the Petitioner, frustrating her legacy and her chance at being granted an extension of service. In this regard the Petitioner drew the attention of court primarily to the judgment delivered in the case of Mohamed Niswer Ismail v Engineer Majeed(SC FR 389/2015) SC Minutes 20. 09. 2016.

THE POSITION OF THE RESPONDENTS:

26. The Respondent highlighted and alleged a few main procedural failures on the part of the Petitioner. The Respondents submitted that the signed MOU lacked approval of the Attorney General as it lacked essential clauses, was devoid of quality assurance mechanisms and contained no non-performance guarantees of security provisions. The Respondents contended that the expenditure was made without approval of the chief accounting officer. Furthermore, they alleged that in making the payment of Rs. 32.5 million before the servers were procured was a violation of the Financial Regulation 137 which states that:

“Financial Regulation 137- Approval of an officer who is empowered to approve services, works or supplies on completion and to admit ... is referred to in these regulations as Approving Officer. He will be responsible to the Accounting Officer for verifying that the work or service supply arises out of an authorization by the appropriate Authorizing officer and/or out of an agreement...”

27. The Respondents also contended that Financial Regulations 103 and 104 were violated as a loss of Rs. 500,000 had taken place, and thus dictating that an inquiry must be gone into. It was submitted that the first preliminary investigation failed to satisfy the following conditions: ascertainment of the extent of the loss; fix responsibility; identification of the officers directly or indirectly responsible; determination of the nature of the fault and recommendation of the recovery and disciplinary action. The Respondents argued that it was due to these faults of the first investigation that a second one was prescribed as necessary by the Ministry.

28. In dealing with the charges issued against the Respondents, it was stated that the relevant offences fell under the categorization set out in Chapter XLVIII of the Establishments Code of Sri Lanka, respectively the offences no. 15, 07, 08 and 10.

IS THE PETITIONER RESPONSIBLE FOR FAILURE TO DELIVER SERVICES?

29. It was contended for the 1st to 23rd Respondents that the ICTA was appointed as a Procurement consultant, **not as a supplier**; the MOU states ICTA’s role is to ‘initiate the bidding process and procure relevant services; NIPO and the Petitioner retained responsibility for financial oversight

and approval of payments; the Petitioner, as the approving authority, authorized payment before verifying that ICTA had procured and delivered the services; this is precisely the breach contemplated by FR 137; no responsible approving officer would authorize full payment without evidence of delivery.

30. It is seen that as Director General of NIPO, the Petitioner's responsibility was to secure funding and engage the State's statutory ICT expert to carry out the procurement. The duty to physically procure, supply and install the servers rested solely with ICTA under the terms of the MOU (P23). Clause 4.3 of the MOU require ICTA to complete the procurement within six months of signing the agreement. Thus, the Petitioner cannot be held personally liable for the non-delivery of items that a separate statutory body was contractually and legally mandated to provide. The Respondent's position that the Petitioner could not delegate these responsibilities to ICTA misconstrues the nature of the engagement. The very purpose of engaging ICTA has been outsourcing the e-NIPO Project because NIPO lacked the technical expertise to execute such a complex ICT procurement independently. This cannot be seen as improper delegation of responsibility but only a compliance with mandatory government policy requiring consultation with the State's designated ICT authority.
31. The MOU (P23) between NIPO and ICTA has been entered pursuant to a written approval of the Ministry of Industry and Commerce issued on 27th December 2016 (vide P22). The execution of MOU has been a mandatory precondition set by ICTA, as confirmed by an email (P92) stating: "if ICTA is to follow the procurement process on behalf of NIPO, a MOU will have to be signed between parties". The draft has been prepared by ICTA as their standard agreement for e-Government projects. In strict adherence to Government policy requiring NIPO to consult the statutory expert on ICT matters, NIPO has deferred to ICTA's expertise and only suggested minor changes, retaining substantive clauses proposed by ICTA. The standard MOU included Clause 3.3 which provided: "*NIPO shall provide the required funding for the Project (refer Annex 1) and transfer funds to ICTA for the implementation of the Project in a timely manner*".
32. The Project cost has been estimated at Rs. 32.5 million, covering server procurement (Rs 25 million) and three years of maintenance. (Rs. 7.5 million).
33. **On 13th January 2017, the ICTA Project Manager has informed NIPO that procurement could only formally commence once funds were received,** as the process has to be concluded

within six months. (P93). It reads as follows:

“Even if the legal procedures are over, we can officially start the procurement after we revived the funds from your organization. As we have to finish the procurement within 6 months, I would be grateful u if you could send necessary funds for commence the procurement. Furthermore, as you stated that your software requirements will be supplied by the consultant, please again verify with the consultant. If you need any assistance, our technical officers can directly communicate with your consultant to make sure the availability of the software.”(the emphasis was added)

34. Pursuant to the above request, the payment has been made to ICTA. It is important to note that although the payment voucher has been dated 31st December 2016 for the purpose to remain within that financial year’s allocation, funds have been only released after ICTA formally requested to begin work. (vide receipt dated 06.02.2017)

I will now deal with the fact **whether the Financial Regulation 137 is relevant and, if so, whether the Petitioner has violated said Regulation.**

35. First, FR 137 defines an “Approving Officer” and outlines certain administrative tasks. Thus, it is legally incapable of being violated in the manner alleged. As a defining provision, it establishes authority of an officer rather than prescribing a prohibitory code of conduct. Furthermore, the specific tasks listed, such as verifying physical delivery and checking meter readings are tailored for routine commercial procurement and do not apply to the specialized inter-agency transfer at issue. A plain reading of FR 137 demonstrates that it is intended to regulate payments in routine commercial transactions for “supplies”, “works”, and utility services. Subsection (5) and (6) expressly requires an officer to verify “supplies have been examined” and check “monthly meter readings”. These tasks ensure the State receives tangible goods from a vendor before payment.
36. However, most importantly, the arrangement with ICTA has not been a commercial purchase; it has been an inter-agency collaboration between two statutory bodies. The transfer of funds has been a project mobilization transfer but not a “payment for supplies”. Unlike a payment to a

private contractor where funds leave the Consolidated Fund irrevocably, this transaction involved transferring funds from one Government entity (NIPO) to another (ICTA) for a shared national objective. In this context, applying the routine verification tasks of F.R. 137 to an internal State-sector resource allocation is entirely misconceived.

37. Furthermore, since ICTA was engaged as a specialized technical consultant and procurement agent, the applicable law was the Guidelines for the Selection and Consultants (2007). Clause 1.3 of these Guidelines states that they supersede all previous financial regulations and Treasury Circulars regarding the employment of consultants, which includes the tasks set out in F.R.137. In fact, these Guidelines actually mandate the very conduct the Respondents now question. Clause 10.2 of the Guidelines encourages lump sum contracts, and Clause 9.7.1 stipulates that a procuring entity shall effect advance payments to enable a consultant to begin work promptly.
38. During oral submissions, the Respondents submitted that the Consultant Guidelines limits advance payments to 20% of the contract sum. However, it is apparent that first, the Petitioner has been charged under F.R. 137 but not the Consultant Guidelines. The Respondents cannot shift the legal basis of the charge. Secondly, the “Advance Payment Guarantee” mentioned in that Clause is meant to protect the State from private-sector default. Applying such a requirement to a Statutory body like ICTA is wrong. The refund provision within the MOU (P23) served as the appropriate legal safeguard to ensure any un-utilized funds remained under State control.
39. Moreover, any allegation regarding the validity of the MOU is further negated by the subsequent approval of the Ministry. On 8th May 2018, the Ministry of Industry and Commerce had granted approval to extend the MOU (vide P26). By the said letter, the Ministry has expressly directed NIPO to utilize the NIPO IP fund in the event Treasury Funds were unavailable or insufficient for the year 2018. By directing NIPO to utilize its own IP Fund to continue the project, the Ministry has formally ratified the original framework and confirmed that the transfer of funds to ICTA was an authorized and appropriate use of State resources.
40. In the aforesaid circumstances, this Court is of the view that the F.R. 137 has no relevance to the issue at hand. For the failure of compliance, the ICTA the 24th Respondent is directly liable as it has misappropriated the entire amount of 35 million by utilizing it to payment of salaries of their employees. Surprisingly, the State has not taken any action at all against the 24th Respondent.

41. The Respondents have cited Boyagodage Manoj Lanka v Janaka Sugathadasa - CA/471/2015/WRIT decided on 16.07.2018, where the application of Financial Regulation (F.R.) No. 137 has been considered. It is held as follows:

“The petitioner was interdicted under section 31 of Chapter XLVIII of the Establishment Code whereby inter alia a Secretary to a Ministry is empowered to interdict a public officer on certain acts of misconduct subject to the covering approval of the Disciplinary Authority, which is the Public Service Commission.

According to the letter of interdiction marked P9, one of the offences committed by the petitioner is an alleged violation of Government Financial Regulation No.137, which is an offence falls in the First Schedule to Chapter XLVIII of the Establishment Code.

Hence the argument of learned President's Counsel for the petitioner that interdiction was made by the Secretary to the Ministry without any authority and therefore is a nullity is not entitled to succeed.

Learned President's Counsel for the petitioner then makes a detailed analysis of facts to say that the petitioner has committed no offence and he has acted right throughout bona fide and therefore the decision to chargesheet the petitioner for an offence falling under the First Schedule to Chapter XLVIII of the Establishment Code and to interdict the petitioner pending formal inquiry is manifestly unreasonable and irrational.

*Notwithstanding in my view there is force in that submission, I must say that this Court in the exercise of writ jurisdiction is not expected to enter too much into the arena meant for the disciplinary authority and endeavour to substitute the views of this Court in place of those of the disciplinary authority especially when the formal disciplinary inquiry is underway, unless the impugned decision is outrageously unreasonable or irrational. In judicial review, unreasonableness or irrationality is assessed by the standard of unreasonableness set out in *Associated Provincial Picture Houses Ltd v. Wednesbury Corporation*¹, which is commonly known as "Wednesbury unreasonableness". It applies to a decision which is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at it. (*Council of Civil Service Unions v. Minister for the Civil Service*²) Given the fact that the payment was made on a document later proved to be a forged one, which the petitioner as the Accountant had certified as a true copy, I doubt*

whether this Court can say that the decision is irrational or perverse according to Wednesbury standard notwithstanding there are forceful mitigating circumstances, which, I am certain, the disciplinary authority will take into account at the end of the formal disciplinary inquiry.”

42. The facts of the above case can be clearly distinguished from the facts of the instant case. In the instant case, there is no fraud or forgery in the part of the Petitioner. Conversely, in the instant case, the fraud or misappropriation of public finance passed for a specific national task has been committed by the 24th Respondent. The Petitioner has acted with the approval of the Ministry and entered into a legal agreement with another Government Entity ICTA which is the 24th Respondent who had acted illegally and committed more serious offence of misappropriation of finances provided for the e-NIPO government project which is of great importance to the State for a lesser requirement of payment of salaries.
43. **What is the more serious wrong or offence? Is it misappropriation of funding allocated for the e-NIPO project which is singularly allocated for the Accession to the Madrid Protocol to the payment of regular task of paying salaries one's own employees or the Petitioner paying entire amount pursuant to the request of ICTA stating that they would not commence the process unless whole amount is paid at once. In my view, it is the former is the more serious wrongful act that the authorities could have taken into consideration. The State authorities could have taken action against ICTA as the first Preliminary Inquiry has correctly concluded at least in 2023. Taking action very much belatedly against the Petitioner instead of no action against ICTA is outrageously unreasonable and irrational decision. It is my view that this decision surpasses the Wednesbury Unreasonableness and hence, subject to be quashed.**
44. Moreover, the Respondent's allegation that the Petitioner failed to take steps to secure the hardware is contradicted by the correspondence and the interventions initiated by the Petitioner to secure the goods.
45. **It is evident that between 2017 and 2025, she had maintained constant pressure on ICTA through multiple channels to obtain the services as evident from following events:**

2017: Initial Procurement Attempt and Failure:

46. Following the execution of the MOU in December 2016 and transfer of funds in February 2017, ICTA has initiated the procurement process by inviting bids in September 2027 (P24). However, this initial tender has failed due to non-compliant technical submissions from bidders.

2018: Extension of MOU:

47. Rather than abandoning the project, the Petitioner had taken immediate steps to ensure its continuation by seeking and obtaining Ministry approval by May 2018 to extend the MOU to allow ICTA additional time to complete the procurement (P25, P26) and has sent reminders demanding that ICTA re-initiate the procurement (P27, P28).

2019: Seeking Attorney General's Advice:

48. Despite these efforts and extended timeline, ICTA has failed to recommence the procurement or provide any substantive progress updates. By early 2019, it has become clear to the Petitioner that informal reminders and Ministry directives were insufficient to compel ICTA's performance. Accordingly, in February 2019, the Petitioner has sought formal legal advice from the Hon. Attorney General regarding the appropriate course of action (P29). The Attorney General has advised that, in light of a prior Cabinet decision dated 22nd May 2018, disputes between State institutions should avoid legal action, and should be resolved through negotiation. If negotiations failed, the Hon. Attorney General has recommended referral to the Cabinet of Ministers, in terms of paragraph (i)(c) of the said Cabinet decision.

2019: Negotiation Attempts:

49. Acting strictly in accordance with this advice, the Petitioner has attempted to resolve the matter through negotiation. On 29th May 2019, a meeting had been convened between the Secretaries of the relevant Ministries. The negotiations has failed to produce a resolution, and all parties have agreed that the dispute should be formally referred to the Cabinet of Ministers. However, despite this agreement, the responsible Secretaries have failed to communicate any progress to the Petitioner. Consequently, on 19th August 2019, the Petitioner has written directly to the Secretary of the Ministry of Science, Technology and Research, urging immediate referral of the matter to cabinet as advised by the Hon. Attorney General (P31).

2020: Cabinet Referral and Decision:

50. On 14th January 2020, the matter has been submitted to the Cabinet of Ministers by the Minister of Higher Education, Technology and Innovation (the then Line Ministry) under cabinet Memorandum No. 20/0139/215/009, titled “*Settlement of the breach of contract entered into between NIPO and ICTA of Sri Lanka*”. (vide P32)
51. The Cabinet Memorandum has sought Cabinet approval to either:
- i. Direct ICTA to provide the services set out in the MOU to NIPO as a matter of priority,
 - ii. Direct ICTA to return the Rs. 32.5 million already paid to enable NIPO to initiate a procurement process with another institution.
 - iii. Agree upon any other alternative solution that the Cabinet deems appropriate.
52. In his observations dated 2nd February 2020, the Minister of Finance, Economy and Policy Development has highlighted that, under a Presidential Circular, all government IT-related projects must be implemented under the supervision of ICTA. The Minister of Justice, Human Rights and Law Reforms in his observations, has strongly criticised ICTA for failing to honour the MOU, for misusing public funds, and called for prompt resolution in accordance with the Attorney General’s recommendations. By Cabinet decision dated 20th February 2020 (P32), the Cabinet has directed the Secretary to the Ministry of Higher Education, Technology and Innovation to initiate discussions with the Secretary to the Ministry of Defence and the Board of Directors of ICTA to reach an agreement to continue the e-NIPO Project.

2020: ICTA proposes alternative solution:

53. Following the above directive, the Ministry of Defence (then ICTA’s line Ministry) has convened a meeting on 29th June 2020 with representatives from the Ministry of Higher Education Technology and Innovation, NIPO, and ICTA (P33). At the said meeting, more than three years after receiving full payment, ICTA has informed stakeholders that it was unable to refund the monies or procure the physical servers as originally agreed. Instead, ICTA has proposed hosting the system on the Lanka Government Cloud free of charge for five years. The Petitioner has immediately raised concerns at the said meeting noting that NIPO required physical servers to meet technical specifications of the WIPO-provided IPAS system and expressing doubt regarding compatibility with the Local Government Cloud.

54. Nevertheless, the Secretary to the Ministry of Higher Education, Technology and Innovation has expressed support for ICTA's proposal, and the Secretary to the Ministry of Defence and the Secretary to the Ministry of Higher Education have jointly directed all officials to arrive at an amicable technical solution without delay.

2020: Due Diligence on Alternative Proposal:

55. The Petitioner has undertaken to verify whether ICTA's proposed alternative was technically viable by writing to the World Intellectual Property Office (WIPO) consultant by email P34), explaining ICTA's proposal to host the e-NIPO system on the Lanka Government Cloud instead of deploying physical servers as originally planned. On 31st July 2020 (vide P35) the Petitioner has informed the Secretary of Defence that the WIPO consultant had flagged the need for complete software, operating systems, and stable network access before any migration to the government cloud be considered. Thereafter, at ICTA's request, the Petitioner has facilitated a technical discussion between ICTA's Chief Technology Officer and the WIPO consultant. Following that, on 16th September 2020, the CTO of ICTA has confirmed that the NIPO system could be migrated to the Lanka Government Cloud (vide P36, P37, P38).

2021: Draft Revised MOU:

56. Given ICTA's assurances, including the confirmation from its Chief Technology Officer, the Petitioner has commenced preparations for a revised MOU to formalize the cloud-based solution. By P39 on 23rd June 2021, she has written to the Attorney General's Department, referring to the AG's earlier advice and noting the Cabinet direction to enter into a fresh agreement. A draft MOU has also been enclosed for AG's observations and legal clearance. The AG's Department has responded on 16th August 2021 by P40 with comments and observations on the proposed draft. It was submitted by the Petitioner that however, due to the COVID-19 lockdown during much of 2021, little progress has been made in finalising the revised agreement or reactivating the project.

2022: Ministry Recommendation and Continued Efforts:

57. On 6th May 2022, by the letter marked as P41, the Ministry of Technology has written to the Petitioner recommending that ICTA provide the necessary server infrastructure visa the Lanka Government Cloud to enable NIPO's transition to a digital platform. On 19th October 2022, representatives from ICTA, the Ministry and NIPO have met to discuss implementation. (vide

P42). Following the meeting, ICTA has emailed proposed terms and conditions for using the LGC Cloud. (vide P43). The Petitioner has replied on 27.10.2022 (P45) clarifying that a standard LGC template agreement would not be suitable given that NIPO had already paid RS. 32.5 million under the original MOU, and proposing instead to proceed with the draft cleared by the AG, incorporating necessary LGC clauses. At the 19.10.2022 meeting, ICTA also has requested clarifications regarding software requirements.

58. The Petitioner after contacting WIPO on 20.10.2022, has informed ICTA of the technical specifications in accordance with WIPO's recommendations. (vide Annex D to P45). It was Petitioner's submission that despite these efforts, ICTA again failed to take necessary steps. The Petitioner has written to the Secretary to the Ministry of Technology highlighting the continued lack of response and urging expedition of the project (vide P46).

2022-2023: Reversal of ICTA's position on compatibility:

59. ICTA has responded on 27th and 28th December 2022 (vide P47 and P48) claiming that the Lanka Government Cloud (LGC) was not on Oracle Certified Enterprise Grade Platform and therefore not compatible with the NIPO system. This was more than two years after assuring technical feasibility. ICTA has proposed that NIPO either switch to a different software platform or host the system on an external Oracle-certified data centre at an estimated cost of Rs. 60 million requiring NIPO to bear an additional Rs. 27.5 million (vide P47, P48). The Petitioner has written on 10.01.2023 to the Chairman of ICTA (vide P49) clarifying that:

- i. The IPAS system had run on an Oracle-based platform in Sri Lanka since 2007;
- ii. This had been clearly communicated to ICTA previously;
- iii. Switching platforms was not an option due to WIPO's terms of ongoing technical support;
- iv. The incompatibility issue was being raised belatedly, after ICTA's own CTO had confirmed feasibility in 2020.

60. As a result of ICTA's reversal, the draft agreement cleared by the Attorney General become no longer viable, as it no longer reflected a technically feasible or mutually agreed solution.

2023: Further efforts:

61. In view of the continued impasse, the Ministry of Technology has organized a meeting on 24.01.2023 with the Secretary of the Ministry of Trade, Commerce and Food Safety, the Chairman of ICTA and the Director General of NIPO to address ICTA's breach of contract (vide P50). The Prime Minister's Office, having being informed of the matter, has written to ICTA on 03.02.2023 directing submission of a detailed report by 14th February 2023 (vide P51). ICTA has replied on 14.02.2023, claiming it remained committed to resolving the issue while maintaining that the LGC was incompatible with IPAS and awaiting confirmation from NIPO regarding willingness to bear additional costs (vide P 52).
62. On 23rd February 2023, the Petitioner has written to the Prime Minister's Office clarifying that:
- i. ICTA has belatedly raised the incompatibility issue only in December 2022;
 - ii. NIPO required an Oracle-based server system;
 - iii. NIPO could not justify using additional government funds for a third-party cloud server; and
 - iv. The original 2016 plan to procure physical servers should be implemented (P 53).
63. Thereafter as evident from P54, the Secretary to the Ministry of Trade, Commerce and Food Security has organized a meeting on 27.03.2023 with ICTA, NIPO and officials from Ministry of Technology. **It has been decided that the money paid to ICTA should be refunded to NIPO and that NIPO would thereafter purchase the necessary servers directly.**
64. Accordingly, the Secretary to the Ministry of Technology has written to the Chairman of ICTA in June 2023 directing immediate action to settle the matter as agreed (vide P 55). The Secretary to the Ministry of Trade also has written on 15.06.2023, noting that although ICTA had agreed to return the money, it had not done so (vide P56). The Ministry of Technology has sent another reminder on 28th June 2023 (vide P57). **On 24.07.2023, the Petitioner has written to the Secretary, Ministry of Technology stating that the digitization project remained on hold due to lack of server machines and requesting expedition of the refund (vide P 58).**

2023: ICTA's explicit admission of Misappropriation

65. In August 2023, the Petitioner has become aware that at a Board Meeting **on 22nd August 2023, ICTA has passed a resolution requesting Rs. 32,363,150 from the Treasury for payment to**

NIPO, because ICTA had already utilized the funds received from NIPO to pay ICTA staff salaries in April 2017 (vide P 63).

66. The Board resolution explicitly states: “The ICTA, however, having utilized the NIPO monies to pay ICTA staff salaries in April 2017, failed to deliver the expected services to the NIPO”. **It is the view of this Court that this admission confirms that:**

- i. ICTA received the full payment from NIPO;**
- ii. ICTA misappropriated those funds for its own operational expenses (staff salaries);**
- iii. ICTA failed to deliver any of the contractual services;**
- iv. The failure was entirely ICTA’s institutional breach, not any deficiency on the Petitioner’s part.**

2023-2024: request for Treasury Payment:

67. Subsequently, by letter P64 addressed to the Secretary to the Treasury dated 11.09.2023, the CEO of ICTA has requested the Treasury to effect the payment directly to NIPO. Following this, the Ministry of Technology has written to the Treasury requesting that Rs. 32,362,150 be paid directly to NIPO as requested by ICTA (vide P 66). The Petitioner also has sent further requests to the Treasury on 16.02.2024 and the Secretary to the Ministry of Trade on 19.04.2024 (vide P66 and P 67).

2024: COPA Intervention:

68. This issue has also been raised by the Committee on Public Accounts on 08.08.2024 (vide P 68). COPA has observed that:

- i. ICTA officials had committed a grave offence;**
- ii. Requesting the Treasury to settle money due from ICTA was not a suitable mechanism;**
- iii. The secretaries of the relevant Ministries should recover the money from ICTA within three months.**

69. The Secretary to the Ministry of Digital Economy (ICTA’s current line Ministry) has written to ICTA on 11.12.2024 (vide P 69) referring to the COPA decision and directing ICTA to refund the money to NIPO. By letter dated 20.01.2025 (vide P 74) the Secretary to the Ministry of Trade also has directed the Petitioner to take steps to recover the money from ICTA.

2025: Continued Pursuit of Recovery:

70. Pursuant to the above direction, on 24.01.2025, the Petitioner has written to ICTA demanding reimbursement of the Rs. 32.5 million paid for server machines (vide P 75). On 07.03.2025, the Petitioner has submitted a fresh proposal (vide P 76) as requested by the Secretary, Ministry of Digital Economy, regarding recovery of funds from ICTA and reinvestment for the NIPO digitization project.
71. It is clearly set out in the documents marked A1 that ICTA, at its meeting held in August 2025, had resolved to return the funds received by ICTA in respect of the Implementation of the e-NIPO project and has accordingly made arrangements to effect the full repayment to NIPO.
72. It is my considered view that foregoing documentary record spanning 2017 to 2025 has established very clearly that:
- a. The Petitioner has fulfilled all her responsibilities under the MOU by securing funding and engaging the State's designated IT expert.
 - b. ICTA has breached its contractual obligations entirely, failing to procure servers within the stipulated six-month period or at any time thereafter.
 - c. The Petitioner has taken exhaustive and persistent action to enforce ICTA's obligations, including: repeated written reminders; seeking legal advice from the Attorney General and acting strictly in accordance with that advice; facilitating cabinet intervention; conducting technical due diligence on ICTA's alternative proposals; and escalating the matter through multiple Ministries and ultimately to the Prime Minister's Office.
 - d. ICTA has explicitly admitted in its own Board Resolution that it misappropriated NIPO's funds to pay its own staff salaries and failed to deliver the contracted devices.
 - e. Independent authorities have confirmed ICTA's breach - the Ministry of Justice has characterized it as misuse of public funds; the Cabinet directed resolution of ICTA's breach and COPA found ICTA officials committed a grave offence. Multiple Secretaries and Ministries over successive governments have acknowledged the problem and attempted to compel ICTA's performance or facilitate recovery.

73. In the circumstances, the respondents' allegation that the Petitioner failed to take steps to recover the servers and misappropriated government resources is therefore entirely one sided, biased, baseless and outrageously unreasonable one. The reason is, as is evidenced by the documentary record, the entire misappropriation has been committed by ICTA, as ICTA itself has admitted, and not the Petitioner.

TWO PRELIMINARY INVESTIGATIONS:

74. On 10th August 2023, the Secretary to the Ministry of Trade has appointed the Director General (Monitoring) of the same Ministry, Mr. U.G. Ratnasiri to conduct a preliminary investigation into the payment of Rs. 32.5 million to ICTA in 2016 and the failure to procure the agreed servers under the 2016 MOU (vide P 59, P 60). Despite filing RTI applications and making repeated requests, the Petitioner has been denied access to this investigation report prior to filing this writ application (vide P61, P62). The report has been only disclosed through the Objections marked as WS1.

75. It is pertinent to note that the First Preliminary Report has found no wrongdoing by the Petitioner.
It has concluded that:

- a. There has been no wrongdoing in the steps taken by NIPO to carry out this project,
- b. ICTA has neglected its responsibility as per the MOU, and
- c. ICTA has misappropriated the money it received without applying it to this project.

76. The investigating officer has recommended that:

- a. ICTA should initiate and complete the project as per the agreement, or if unable to do so, immediately return the Rs. 32.5 million to NIPO; and
- b. Interest income lost on that money from 2016 to date should be calculated and recovered.

IS THE SECOND PRELIMINARY INVESTIGATION UNLAWFUL?

77. **It is revealed that more than one year after completing the first investigation**, the Ministry has ordered a second preliminary investigation into the same matter. On 24th September 2024, the Ministry has issued a fresh letter appointing Mr. U.S.S. Kumara, an officer from the Ministry of Public Administration to conduct a second preliminary investigation into the same matter.

78. The Petitioner has promptly raised objections (vide P 71) and informed the new Secretary to the Ministry that:

- a. The procurement responsibility had been assigned to ICTA with the approval of the Ministry Secretary;
- b. COPA had directed the Treasury and the Trade Ministry to resolve the matter by recovering funds from ICTA;
- c. The Petitioner has been made aware that the said Preliminary Investigation report found no fault on the Petitioner's part;
- d. The Petitioner was being subjected to targeted harassment.

79. The Respondents contended that the second investigation was required because the first investigation (August 2023) violated FR 103 and FR 104; the second investigation (November 2024) was comprehensive and satisfied FR 103 and 104; there is no legal basis preventing further investigation when the first investigation is inconclusive or preliminary.

80. **The issue is whether the second investigation is unlawful, procedural irregular and abuse of process in view of the following circumstances:**

81. Clause 3.1 of Chapter XLVIII of the Establishment Code provides that where disciplinary action is contemplated against a Head of Department, the Secretary "*will cause such preliminary investigations as are necessary*". It was submitted by the Petitioner that the use of the plural "investigations" contemplates concurrent, not repeat investigations. This is confirmed by Clause 13.4 which provides "*The relevant authority may appoint several officers or groups of officers as the case may be, to independently conduct a preliminary investigation into a single transaction or a series of transactions*". The word "independently" makes clear that multiple investigations are authorized only where they are conducted simultaneously by different officers

to provide independent perspectives on the same facts at the same time and not to re-investigate matters already determined.

82. Nowhere in Chapter XLVIII is there any provision permitting a second investigation to be ordered after a first investigation has been completed, submitted and concluded. In terms of the E-Code, once a preliminary investigation has been completed and submitted, the Secretary must proceed in accordance with the disciplinary procedure set out in the E-Code. Clause 3.2 provides that *“If a prima facie case against the officer is disclosed in such preliminary investigation, the Secretary will issue a formal charge sheet on the officer”*. The necessary corollary is that if no *prima facie* case is disclosed, the officer should be cleared.

83. The power to order preliminary investigations is not an unfettered discretion. It must be exercised in accordance with the provisions of the E-Code, the principles of fairness, the principle of finality in administrative proceedings and the legitimate expectation of public officers under investigation.

84. The appointment letter dated 24.09.2024 specifically tasked the second investigating officer with examining only “the payment of the maintenance fee component” of Rs. 7.5 million. However, report reveals that the investigating officer investigated the entire payment of Rs. 32.5 million, not merely the Rs. 7.5 million maintenance component, re-examined the same procurement process, MOU execution, and payment authorization already covered in the first investigation and made findings on matters beyond his terms of reference.

85. **With regard to whether the second investigation report is time barred or not**, I will reproduce Clause 13.2 of Chapter XLVIII of the E-Code which reads as follows:

“An authority ordering a preliminary investigation into an act of misconduct should, at the same time that order is issued, specify the time limit within which the officer or committee of such officers should complete the preliminary investigation taking into consideration the nature of each act of misconduct, as the case may be. However, where the officer conducting the preliminary investigation adduces reasons that there are valid obstacles to completing the investigation within the specified time limit, the relevant authority may grant an

appropriate extension of time. Nevertheless, all relevant parties should ensure that such preliminary investigations are carried out and are completed with the least possible delay”.

86. In the instant case, the second investigation report has been due on 31st October 2024 but was submitted on 27th February 2025 nearly four months after its stipulated deadline without having any evidence on the record of “valid obstacles” as required by Clause 13.2.

87. Clause 13.9 of Chapter XLVIII provides, “*It is not essential that the officer conducting the preliminary investigation is senior to the suspect officer. But it is more appropriate to appoint, whenever possible, an officer senior to the suspect officer*”. Although seniority is not an absolute requirement, the use of the phrase “more appropriate” indicates a strong preference for senior officers.

88. It is revealed that the Petitioner, as Director General of NIPO, has held one of the highest positions in the public service, a Class 1 post confirmed by Cabinet. The first investigation has been conducted by a senior officer of equivalent rank [Director General (Monitoring) Ministry of Trade and Commerce], in compliance with the spirit and intent of Clause 13.9. The second investigation has been conducted by junior officers in departure from the E-Code’s express preference. It was submitted by the Petitioner that the appointment of junior officers suggests an attempt to secure more “pliable” investigators who might reach predetermined conclusions. Although not individually fatal, this violation of the seniority guideline, when viewed cumulatively with the other irregularities supports the conclusion that the second investigation has been designed to circumvent the exculpatory findings of the first investigation.

89. A Ministry minute dated 18.09.2023 marked X2 sought to give reasons to justify the decision to disregard the first preliminary investigation and order a second investigation. **The Petitioner has submitted that each and every justification is factually false, legally misconceived or irrelevant for following reasons:**

- a. First, the minute dated 18.09.2023 claims the first investigation report did not submit original documents. However, the first report clearly states that the documents relied on by the investigator marked 5 to 43 have been kept in his custody and have been annexed

to this report. Thus, the claim is completely unfounded and constitutes a pretext for ordering a second investigation.

- b. Secondly,** the minute records that the first investigation did not examine whether the payment was made in accordance with financial circulars and procurement procedures. However, paragraphs 7.2 and 7.3 of the first investigation report specifically addressed this very issue which confirm that NIPO followed proper procedures in making the payment and there is no indication of any financial fraud or misappropriation of funds by NIPO.
- c. Thirdly,** the minute records that the first investigation is defective because oral testimonies had not been properly recorded through an interview. This is blatantly false as the first report expressly states that oral statements were taken and annexed to the report as annexures 1 to 4. In any event, E-Code does not prescribe any particular form or method for recording oral testimony. The investigator has discretion to determine the appropriate method. Accordingly, there is no basis to find that the method used was improper or inadequate.
- d. Fourthly,** the said minute records that the first report is defective on the basis that it did not examine whether the members of the procurement and evaluation committee fulfilled their obligations to procure the servers. This was outside the mandate of the investigator who was only tasked with investigating the payment to ICTA. The question of whether procurement committee fulfilled its obligations is a separate and distinct question from whether the initial payment was lawful. In any event, this is not a valid basis to re-investigate the Petitioner on the already investigated, namely whether the December 2016 payment was proper.
- e. Fifthly,** the minute falsely records that the first investigation did not consider the obligations of public officials in the payment of public funds. The first investigating officer identified ICTA as the responsible party for the breach and recommended that the sum be recovered from ICTA. It was submitted that it is absurd to criticize the first investigation for “not paying attention to public officials’ obligations” when it specifically identified the defaulting party (ICTA).

90. When both reports are perused in view of the above submissions, it can be seen that there is no basis for ordering a second investigation report. In fact, despite the minute dated 18.09.2023

which found fault with the first report, the subsequent minutes dated 25.09.2023 and 04.10.2023 endorsed the first investigation report and forwarded it to the Secretary for further action which is to implement the recommendation to recover the sum from ICTA. However, one year later, by a minute dated 04.09.2024, a second investigation has been ordered on the basis that the first report was “incomplete” because it allegedly did not deal with the upfront payment of maintenance amounting to Rs. 7.5 million. However, this proves to be blatantly false as the first paragraph of the report clearly states it covers the entire sum of Rs. 32.5 million including the sum paid for maintenance.

91. The Respondent has claimed in paragraph 29(e) of their Objections that the first report was incomplete because it did not meet the requirements set out in FR 104(3) and therefore a second investigation was necessary. FR 104 governs “Reports of Losses and Damage to the Auditor-General”. The first investigation report was not a financial loss report to the Auditor General under FR 104. It was a disciplinary preliminary investigation conducted under the Establishment Code to determine whether there was a *prima facie* case for disciplinary charges against the Petitioner. It is apparent that the first investigation has complied fully with the requirements of Clause 13.1 of the Establishment Code, which sets out the requirements of a preliminary investigation report.
92. It is revealed before this Court that this matter has already been submitted to the Cabinet of Ministers. In the Cabinet Memorandum dated 14.01.2020, the matter has been presented comprehensively with a request for direction regarding ICTA’s breach of contract. The observations of the Minister of Justice have strongly criticized ICTA for failing to honour the MOU and for misusing public funds. It directed resolution of the matter through discussions with ICTA. At no point has the Cabinet found fault with the Petitioner or has suggested that she had acted improperly.
93. It was submitted by the Petitioner that although the Ministry was actively considering an extension of her services beyond the compulsory retirement age of 60 years, following the issuance of impugned charge sheet, those discussions were abruptly discontinued. It was submitted that it was her belief that the impugned charge sheet P77 has been deliberately intended to create a false record of misconduct to frustrate the extension of service and tarnish her legacy as a career public officer. The totality of facts and circumstances and specially the timing of second investigation after several years of delay from the 2017 and after a lapse of

more than one year from the first preliminary investigation report which exonerated her corroborates Petitioner's said stance.

IS THE DECISION TO ISSUE CHARGE SHEET MANIFESTLY OPPRESSIVE?

94. The Respondents have annexed documents marked R7(a) to R7(i) to insinuate that the Petitioner's career was less than stellar. The Petitioner has replied stating said documents R7(a) to R7(i) are merely exchanges of correspondence with the then Director General in respect of the Petitioner's personal appraisal reports which on occasion, could not be submitted on time due to the heavy workload she was compelled to shoulder in the absence of staff officers. At most, the non-submission of such appraisal reports would only have affected the earning of the Petitioner's annual increments but would not in any way have impacted the administrative functions of the Office. Therefore, the Respondent's reliance on documents R7(a) to R7(i) which are neither punishments nor relevant to the instant proceedings without including the Petitioner's responses thereto demonstrates that the respondents could not find any substantive fault with the Petitioner during her 32 years of service to the NIPO.
95. Thus, it is evident that the Petitioner has served the public for over three decades with an unblemished record. She has now faced a prospect of financial insecurity and reputation harm at the end of her service, solely due to impugned act of the Respondents.
96. In the circumstances, it is my considered view that the impugned Charge Sheet marked P77 is illegal, unlawful, irrational, unreasonable and tainted with mala fide and bias. The totality of the facts and circumstances of the case amply proved that the Petitioner has acted at all times in good faith, under the direct authority of the Cabinet and the Ministry and in strict compliance with the advice of the Attorney General. The failure to implement the project has been caused solely by the institutional failure and breach of contract by ICTA, not the Petitioner.
97. The 1st to 23rd Respondents have not taken any action from 2017 against 24th Respondent- ICTA for misusing or misappropriating public funds. It is my view that the 24th Respondent's act amounts to criminal breach of trust and/or misappropriation of public finance. Without pursuing against the real wrongdoer, the respondents have proceeded against the Petitioner who has acted

in terms of the MOU. Thus, the impugned charge sheet P77 is completely bad in law and void ab initio on the ground of illegality, irrationality, procedural impropriety.

98. Moreover, it is well established by case law that disciplinary mechanisms must not be used to inflict hardship on retiring officers, especially when the authorities had years to act but failed to do so. In Mohamed Niswer Ismail v. Engineer Majeed and Others (SC FR 389/2015) SC Minutes 20. 09. 2016, Anil Gooneratne J. has made following observations:

“This is a case where a draft charge was not considered and approved by the Secretary to the relevant Ministry and/or the officials in authority, for over 6 years. It could have been done during the period the Petitioner was, in the government service, if the officials took their job seriously. A slack situation of this nature of those in authority cannot be condoned. If I may incorporate the very words contained in the Judgment delivered by Dr. Amarasinghe J. in Wilbert Godawela Vs. S.D. Chandradasa and Others - 1995(2) SLR at page 341, the case in hand would be better understood. It states:

That Circular is entitled “Expediting the award of the pensions”. It explains the difficulties experienced by public servants as a result of delays in the payment of pensions caused by the absence of relevant information, and prescribes a two-stage procedure for payment to obviate those difficulties. Paragraph 2.III states that “a temporary pension of 70% of the full pension will be paid within one month from the date of retirement of an officer so that there will be no break in his income.” It is further provided that, “a full pension will be paid not more than three months after retirement”. The Circular, which was issued under the hand of the Secretary, Ministry of Public Administration, concludes with the following words: “Heads of Departments and all officers dealing with pensions are kindly requested to treat the question of the rapid disposal of pensions with humanity and sympathy. The person with which this circular concerns itself are colleagues, who in the large majority of cases have served in the Public Service honourably and faithfully. We should make every effort to ensure that their last years on this earth are made free from want and financial burden. I do hope, therefore you will give me your utmost cooperation in implementing these proposals...”

*What is emphasized above is a rapid disposal of pensions with humanity and sympathy. The words and phrases referred to above leaves no room for delays and lapses, on the part of the officials, though PA Circular 29/90 is a guide to public servants and which has no force of law. As such, I do not think in all the facts and circumstances of the case in hand, State need to get over the difficulty of an apparent lapse by resorting to a legal maxim of 'directory' or 'mandatory' which is familiar to interpretation of statutes. **The learned Deputy Solicitor General argued that a delay in serving the charge sheet is no bar as words used in para 1.12 of PA Circular 29/90 is directory.***

Whatever decision taken by the officials were very late and was done only after Petitioner's retirement on 14.05.2014. I have discussed above the application of Section 12 of the Minutes on Pensions and the governing Public Administration Circular 29/90, and the failure of those responsible to adhere to same. It is the view of this court that Petitioner's pension had been withheld unreasonably and in an arbitrary manner. No doubt he has been subjected to unfair treatment. Section 12 of the Minutes on Pension and the governing Public Administration Circular had not been correctly observed and applied correctly in so far as the Petitioner is concerned. Therefore, he has been denied the equal protection of the law guaranteed by the Constitution". (the emphasis was added)

99. In the instant case, the above observations apply more strongly as the charge sheet stems from an unlawful second belated investigation and was timed specifically to prevent the Petitioner's service extension and prevent her from enjoying her retirement benefits.

100. In Chief Inspector W.A.J.H. Fonseka and others v. Neville Piyadigama, Chairman, National Police Commission and others, SC (FR) Application No. 73/2009 decided on 08.09.2020, Priyantha Jayawardena PC, J., held at page 21:

*"It is important to keep in mind that when an individual joins the public service, he or she entirely bases his/her life-long expectation in the public service for the betterment of his/her life. Further, given the nature of the public service, **it is common for an individual serving in the public sector to expect certain benefits such as security in tenure, advancement in their career and retirement benefits**". (The emphasis was added)*

101. In the instant case, the Petitioner has devoted over three decades of her life to faithful public service and based her “life-long expectation in the public service for the betterment of her life”. Accordingly, I concede with the contention of the Petitioner that the deprivation of retirement benefits which she legitimately earned through 32 years of unblemished service on the basis of an illegal, irrational, arbitrary and unreasonable charge sheet constitutes grave injustice that strikes at the security and the dignity that public servants are entitled to expect upon completing their career in service to the nation.

102. For the foregoing reasons, I am inclined to grant a writ of *Certiorari* to quash the charge sheet marked as P77. The costs of this application should be borne out by the 24th Respondent and the Petitioner is entitled to recover such costs from the 24th Respondent.

Judge of the Court of Appeal

Hon. Rohantha Abeysuriya PC, J.(P/CA)

I agree.

President of the Court of Appeal